

"The office of the President of India has evolved from being a nominal head to an institution of significant influence". Examine the constitutional provisions related to the President and analyse how the role has evolved over the years.

The constitutional role of President has been mentioned under Article 52 to Article 78, where Article 53 explicitly mentions the executive role of President. India follows parliamentary system, where President act as nominal head, but his discretionary power, pocket veto, suspensive veto, returning any advice once for reconsideration as per 44th amendment act has evolved the institution's significance over time.

Constitutional Provisions related to President.

(A) Election and Term

President is indirectly elected by an electoral college consisting of elected members of Parliament, legislative assemblies of states and UTs under article 54.

President under article 56 is elected for ~~term~~ fixed tenure of 5 years.

(B) Powers related to President

<u>Powers</u>	<u>CONSTITUTIONAL PROVISION.</u>
<u>① Executive Power</u>	<u>Article 53</u> → The executive power of union shall be vested in President. <u>Article 74</u> → There shall be a Council of minister headed by PM to aid and advice President. <u>Article 78</u> → President can seek information from Prime minister.
<u>② Legislative Power</u>	<u>Article 85</u> → President can summon, prorogue and dissolve the Lok Sabha. <u>Article 86</u> → President has right to address either or both Houses assembled together

Article 111 → President can exercise three veto powers: absolute veto, suspensive veto and pocket veto.

Article 123 → President can promulgate ordinances when Parliament is not in session.

③ Emergency Power

Through article 352, 356, 360, President can impose national, state and financial emergency respectively.

④ Judicial Power

Article 72 provides pardoning power to President to grant pardon, commutation, reprieves, respite and remit sentences.

⑤ Discretionary powers

Through pocket veto, seeking information from PM, appointing PM in case of hung assembly, President exercise his discretionary power

EVOLUTION OF PRESIDENT'S ROLE

TIMELINE	ROLE
① 1950-1970s (Nominal Head).	42nd amendment act, 1976 made the President binding to advice of Council of ministers. eg → President Fakhruddin imposed national emergency on mere advice of PM.
② 1970s - 1990s (Assertion of Discretion)	• 44th amendment act, 1978 allowed President to send back any advice for once. • SR Bommai case, 1994 limited the arbitrary use of article 356 which allows for President's rule in states.
③ 2000s - Present (Active Role)	• APJ Abdul Kalam refused to sign the Office of Profit Bill which was brought by UPA government.

Thus, the ~~role~~ coalition politics, judicial engagement, use of ~~s~~ discretionary powers in crisis situation has strengthened the role of President in Parliamentary form of government. The clearer guidelines on discretionary powers can establish the President as a guardian of democracy.